

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 9/11/2026 10:00 AM

#	Case Name	Tentative
1	Cardenas vs. Hypeereon Corporation 30-2026- 01549797-CU- OE-CJC	Motion to be Relieved as Counsel of Record The motion of attorney Lance Rogers, Esq. to withdraw as attorney of record for defendant Hypeereon Corporation is GRANTED. (Code Civ. Proc., § 284, Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. OSC re Corporate Counsel set for 11/5/2026 at 1:30 PM. Defendant is ORDERED to substitute new counsel into the case prior to the hearing or the court will strike its answer (ROA 13) and enter its default. A corporation must be represented by counsel. Moving attorney to give notice.

2	Pedroza vs. First National Insurance Company of America 30-2025-01529067-CU-PO-CJC	Motion to be Relieved as Counsel of Record The motion of attorney Tina Abdolhosseini to withdraw as attorney of record for plaintiff Rosa Maria Pedroza is GRANTED. (Code Civ. Proc., § 284, Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney to give notice.
3	Jurado vs. Stater Bros. Market 30-2024-01397840-CU-PO-CJC	Motion for Leave to File First Amended Complaint Plaintiff, Cathlene Jurado's motion for leave to file first amended complaint (FAC) is GRANTED. Defendant, ADA Solutions, Inc., named as Doe 26, is a relatively new defendant in the action and could have been brought into the case regardless of how the Court ruled on the summary judgment motion. Plaintiff is seeking to amend the complaint to assert a cause of action fitting the facts regarding ADA Solutions, Inc. as opposed to Stater Bros. Market. ADA Solutions, Inc. is free to raise its contentions about timeliness and sufficiency of the allegations after the FAC is filed. Plaintiff is ORDERED to file and serve the FAC within 5 days. Plaintiff to give notice.
4	Zapien vs. Westcliff Plaza Retail LLC 30-2025-01465822-CU-PL-CJC	Motion for Leave to File First Amended Answer Defendants A.V.W., Inc. dba Max Pro and Crown Hardware, Inc. dba Crown Ace Hardware's unopposed Motion for Leave to File a First Amended Answer is GRANTED. Defendants are ORDERED to file and serve the amended answer within 5 days. Defendants to give notice. Motion for Leave to File Cross-Complaint Defendants A.V.W., Inc. dba Max Pro and Crown Hardware, Inc. dba Crown Ace Hardware's unopposed Motion for Leave to File a Cross-complaint is GRANTED.

		Defendants are ORDERED to file and serve the cross-complaint within 5 days. Defendants to give notice.
5	Galstyan vs. Mercedes-Benz USA, LLC 30-2026-01565539-CU-PL-CJC	Motion to Compel Arbitration and Stay Proceedings Defendant Mercedes-Benz USA, LLC's (MBUSA) Motion to Compel Arbitration and Stay Proceedings is GRANTED. Plaintiff's request for judicial notice is DENIED. MBUSA's request for judicial notice is GRANTED as to Exhibits 1.1 and 2-5 (Evid. Code, § 452, subd. (c)) and otherwise DENIED. MBUSA moves to compel arbitration pursuant to a "Motor Vehicle Lease Agreement" between Plaintiff identified as the Lessee and dealership House of Imports in Buena Park as Lessor (Lease). (Newman Decl., ¶ 3, Ex. B.) Plaintiff does not dispute the existence of the Lease. None of Plaintiff's claims against MBUSA seek to enforce any contractual term or any express or implied warranty contained in the Lease. Thus, Plaintiff's claims "are not intimately founded in or intertwined with the sales contracts," and equitable estoppel does not apply. (See <i>Ford Motor Warranty Cases</i> (2025) 17 Cal.5th 1122, 1126, 1134-1135.) The arbitration provision expressly identifies MBUSA as a third party beneficiary (Newman Decl., Ex. B at p. 4), so MBUSA may enforce the arbitration provision as a third party beneficiary. The Lease provides any dispute which arises out of or relates to the lease or any resulting transaction or relationship arising out of this lease, including any such relationship with third parties who do not sign this contract, will be resolved by arbitration. (Newman Decl., ¶ 3, Ex. B at p. 4.) As Plaintiff does not demonstrate the arbitration provision cannot be interpreted to cover her claims, the Court finds the Lease covers Plaintiff's claims. "Both procedural unconscionability and substantive unconscionability must be shown, but 'they need not be present in the same degree' and are evaluated on 'a sliding scale.'" (<i>Pinnacle Museum Tower Assn. v. Pinnacle</i>

Market Development (US), LLC (2012) 55 Cal.4th 223, 246-247 [citations omitted].)

Procedural unconscionability

While adhesive contracts offered on a “take-it-or-leave-it” basis typically contain some aspect of procedural unconscionability, the degree of procedural unconscionability of an adhesion agreement will be low absent evidence of any other indication of oppression or surprise. (*Serpa v. California Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 704.)

Plaintiff contends the Lease is procedurally unconscionable as it is a preprinted contract of adhesion, drafted by the lessor presented to Plaintiff on a take-it or-leave-it basis. Plaintiff also contends the arbitration provision appears on page four of a ten-page form, buried mid-sentence within a single unbolded paragraph, and is not set off by heading or separate signature or initial line.

Plaintiff does not contend, however, she was given insufficient time to read the Lease or precluded from consulting with counsel or asking questions regarding the Lease. Nor does Plaintiff contend the Lease was particularly verbose, illegible, or complex.

Moreover, the arbitration provision is set off by a separate header in a black bar running across the page that states “Important Arbitration Disclosure.” Additionally, page 6 of the Lease states in a boxed section in all caps, “NOTICE TO LESSEE: (1) DO NOT SIGN THIS LEASE BEFORE YOU READ IT . . .” It further states directly above the signature lines, “By signing below, you acknowledge that: . . . You have received and read all 10 pages of this lease carefully and agree to all of its terms, INCLUDING THE IMPORTANT ARBITRATION DISCLOSURES ON PAGES 4 AND 5.”

(Newman Decl., ¶ 3, Ex. B at p. 6 [emphasis in original].)

“Reasonable diligence requires the reading of a contract before signing it. A party cannot use [her] own lack of diligence to avoid an arbitration agreement.” (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1674 [citation omitted].)

The Court finds a low degree of procedural unconscionability.

Substantive unconscionability

		The Court further finds the Lease is not substantively unconscionable. Plaintiff contends “the delegation clause is unconscionable and unenforceable” and “directs this challenge to the delegation clause itself.” (Opp. at 10:19-20.) As such, any claim of unconscionability must be specific to the delegation clause itself. (<i>Tiri v. Lucky Chances, Inc.</i> (2014) 226 Cal.App.4th 231, 247-248 [citing <i>Rent-A-Center, West, Inc. v. Jackson</i> (2010) 561 U.S. 63, 73].) The cost-allocation terms are not unconscionable as it permits Plaintiff to request a reduction or waiver of fees directly from the arbitrator or that a Third Party Beneficiary voluntarily pay an additional share of fees. As discussed above, MBUSA is explicitly identified as a Third Party Beneficiary. The forum-selection term is not unconscionable as neither Plaintiff nor MBUSA have veto power over the choice of forum expressly agreed upon by the parties, the American Arbitration Association. Rather, the arbitration provision provides Plaintiff with an additional opportunity to choose another organization if MBUSA agrees. Finally, while Plaintiff appears to contend the class action waiver is invalid and voids the entire arbitration section, Plaintiff does not demonstrate how this claim of unconscionability is specific to the delegation clause itself. The matter is STAYED pending arbitration. Arbitration Status Review set for 9/23/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. MBUSA to give notice.
6	Jones vs. Uber Technologies, Inc. 30-2025-01456712-CU-PA-CJC	Motion to Vacate Court Order to Compel Arbitration and Lift Stay Plaintiff, Seagen Jones’s motion to vacate order compelling arbitration and lift stay is DENIED. The “motion to vacate” is a disguised and untimely motion for reconsideration. The order is not void and therefore not subject to Code of Civil Procedure section 473, subdivision (d). The court declines to act under Code of Civil Procedure section 128, subdivision (a)(8). Clerk to give notice.

7	Tsehanovsky vs. Owen 30-2024-01410660-CU-PA-CJC	Motion for an Order to Stay Civil Proceedings and/or Discovery Directed at Defendant Evan Owen Defendant, Evan Owen’s motion for an order to stay civil proceedings and/or discovery directed at him, is DENIED. There is no showing defendant has sought to diligently resolve his criminal case, and the court will not allow the civil case to languish while the criminal case makes its way through the court. The court takes judicial notice of the minutes in <i>People v. Owen</i>, case no. 23HF2015, where the court notes beginning February 2024, defendant requested or agreed to a continuance of the pre-trial hearing or preliminary hearing on 2/9/2024, 4/18/2024, 7/8/2024, 9/18/2024, 1/7/2025, 3/20/2025, 5/2/2025, 5/16/2025, 6/6/2025, 7/25/2025, 8/15/2025, 10/31/2025, 1/16/2026, 3/13/2026, 6/26/2026, and 8/20/2026. Plaintiff is entitled to an expeditious and fair resolution of her case. (<i>Fuller v. Superior Court</i> (2001) 87 Cal.App.4th 299, 306.) “The fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter. Justice is meted out in both civil and criminal litigation.” (<i>Ibid.</i>) Plaintiff to give notice.
8	Pinner vs. Griffin 30-2022-01288013-CU-BC-CJC	Petition to Confirm, Correct, or Vacate Arbitration Award The Petition of Petitioners John E. Pinner and Marilyn M. Pinner, individually and as trustees of the Pinner Family Trust, to Confirm Arbitration Award issued by Arbitrator Viggo Boserup on May 28, 2026, is GRANTED. Respondents Dirk T. Griffin and Pinner Construction Co. Inc. oppose confirmation of the Arbitration Award on grounds Arbitrator exceeded his powers. (Code Civ. Proc., § 1286.2, subd. (a)(4).) Respondents contend the Arbitrator exceeded his powers by acting without jurisdiction to re-adjudicate issues he previously adjudicated in a prior arbitration between the parties in which the Arbitrator issued a Final Award on November 17, 2021 (“First Arbitration”). (Kellam Decl., ¶ 4, Ex. C.) Respondents argue the Arbitrator exceeded his powers by deciding in the Second Arbitration the issues of tax refund and Petsense stock which the Arbitrator previously determined in the First Arbitration. In the Second Arbitration, the Arbitrator issued a Corrected Final Award (“Final Award”), in which he considered the arguments

		he had previously decided these issues and fully explained why his decision in the First Arbitration as to both issues remained undisturbed. (Final Award, pp. 6-7, 10-11.) Respondents have failed to show an inconsistency between the awards in the First Arbitration and the Second Arbitration. Further, the Arbitrator's factual and legal determinations are not reviewable on the merits. (<i>Moshonov v. Walsh</i> (2000) 22 Cal.4th 771, 775 [arbitrators do not exceed powers by rendering erroneous decision on legal or factual issue, so long as issue was within the scope of controversy submitted].) Petitioners to submit a simple, standalone judgment only (no notice of ruling, no attached arbitration award) within 5 days. Petitioners to give notice. Application for Writ of Possession after Hearing The application of Petitioners John E. Pinner and Marilyn M. Pinner, Individually and as Trustees of the Pinner Family Trust, for an order for issuance of writ of possession after hearing against respondents Dirk T. Griffin and Pinner Construction Co. Inc. is DENIED. A writ of possession pursuant to section 512.010 is issued as a provisional remedy and permits a plaintiff to obtain possession of tangible personal property <i>prior to trial</i>. Because the court granted the Petition to Confirm the Arbitration Award, the proper procedure would be post-judgment enforcement. Petitioners to give notice.
9	Collision vs. KRC Santa Margarita, LLC 30-2025-01530542-CU-PO-CJC	Demurrer to First Amended Complaint Continued to 9/18/2026.
10	Nguyen vs. Ma 30-2025-01518657-CU-OR-CJC	Demurrer to First Amended Complaint Defendant Lance Ma's Demurrer to Plaintiff Tuan Nguyen's First Amended Complaint is OVERRULED. The Court GRANTS Defendant's request for judicial notice of the existence of the documents, but not of the truth of their contents.

		<u>First cause of action for partition by sale of real property</u> "An equitable interest is sufficient to support a partition action." (<i>Powers v. Powers</i> (1963) 221 Cal.App.2d 746, 750 [citation omitted].) Plaintiff sufficiently alleges he is entitled to at least half of the property based on equitable title based on an agreement with Decedent to "share everything 50-50" and contributions Plaintiff made to the purchase of the property, mortgage, and improvements. (FAC ¶¶ 11, 19.) <u>Second cause of action for unjust enrichment</u> Plaintiff sufficiently alleges he has an equitable interest in the property and Defendants would be unjustly enriched by retaining all the benefits of ownership of the property. (FAC ¶¶ 11, 19, 25.) <u>Third cause of action for forcible eviction</u> A claim for wrongful eviction requires a showing of two elements: (1) plaintiff's peaceable possession and (2) defendants' forcible entry. (<i>Spinks v. Equity Residential Briarwood Apartments</i> (2009) 171 Cal.App.4th 1004, 1039, 1042.) Plaintiff sufficiently alleges he has an equitable interest in the property and Defendants forcibly and wrongfully evicted him from the property. (FAC ¶¶ 11, 19, 28-31.) <u>Fourth cause of action for intentional infliction of emotional distress</u> Plaintiff alleges sufficient facts to support a cause of action for intentional infliction of emotional distress. (FAC ¶¶ 1, 2, 15, 16.) <u>Fifth cause of action for conversion</u> Plaintiff alleges sufficient facts to support a cause of action for conversion. (FAC ¶¶ 39-42.) <u>Sixth cause of action for declaratory relief</u> Plaintiff sufficiently alleges he has an equitable interest in the property and seeks an order declaring the rights of ownership and obligations of based on that interest. (FAC ¶¶ 11, 19, 45, 46.) <u>Seventh cause of action for right to property based on breach of express contract</u>
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		Plaintiff alleges sufficient facts to support a cause of action for right to property based on breach of express contract. (FAC ¶¶ 11, 13, 19, 48-53.) <u>Eighth cause of action for breach of implied contract for reimbursement of mortgage contributions</u> Plaintiff alleges sufficient facts to support a cause of action for breach of implied contract for reimbursement of mortgage contributions. (FAC ¶¶ 11, 13, 19, 55-60.) The Court ORDERS Defendant to file an answer within 5 days. Plaintiff to give notice.
11	DI Overnite Investments, LLC vs. Nabal 30-2024-01393386-CU-BT-CJC	Demurrer to First Amended Cross-Complaint The (Amended) Demurrer to FACC of Cross-Defendants DI Overnite Investments, LLC, Renaissance Ventures, LLC, Joseph Varraveto, and Douglas Garamoni, is OVERRULED. <u>First Cause of Action – Fraud:</u> The FACC adequately alleges Cross-Defendants made false accusations against Cross-Complainant which were part of a scheme to coerce the majority of voting rights-holders to vote to terminate Cross-Complainant. (FACC, ¶ 17.) This is adequate to allege fraud. <u>Second Cause of Action – Declaratory Relief (incorrectly labeled third cause of action on p. 12):</u> The FACC adequately alleges a controversy regarding whether the termination/removal of Cross-Complainant as CEO and related acts were lawful or void. (FACC, ¶¶ 40.) <u>Third Cause of Action – Civil Extortion against DI Overnite Investments LLC, Joe Varraveto, and Douglas M. Garmoni only:</u> “Extortion is the obtaining of property or other consideration from another, with his or her consent, or the obtaining of an official act of a public officer, induced by a wrongful use of force or fear, or under color of official right.” (Pen. Code, § 518, subd. (a).) “Fear, such as will constitute extortion, may be induced by a threat of any of the following: 1. To do an unlawful injury to the person or property of the individual threatened or of a third person.

	2. To accuse the individual threatened, or a relative of his or her, or a member of his or her family, of a crime. [¶]...[¶]" (Pen. Code, § 519.) Cross-Complainant has adequately alleged he had the legal right to possess the company vehicles and Movants' threat to make a police report was wrongful. (FACC, ¶¶ 50-51.) <u>Fourth Cause of Action – Civil Extortion against DI Overnite Investments, LLC, Renaissance Ventures LLC, and Joseph Varraveto only:</u> This extortion claim is based on threats allegedly made to Mike Martin to sign a proxy of his voting rights and take other action against Cross-Complainant or Martin would be subject to adverse action regarding his employment among other acts. (FACC, ¶ 61.) Cross-Complainant alleges these acts coerced Martin to go along with his removal as CEO. (¶ 62.) Although Cross-Complainant does not allege he was the subject of extortionate threats in this claim, he alleges the existence of extortion as well as claimed damages arising from his termination including taking of the company vehicles. Movants fail to cite legal authority holding such a claim based on extortion directed at a third party is not viable. <u>Fifth Cause of Action – Wrongful Termination in Violation of Public Policy:</u> "The discharge of an employee in contravention of fundamental public policy, as expressed in a statute or constitutional provision, can serve as the basis for a tort action for wrongful discharge." (<i>Khajavi v. Feather River Anesthesia Medical Group</i> (2000) 84 Cal.App.4th 32, 51.) As discussed above, Cross-Complainant has adequately alleged his termination violated public policy arising from his claims of theft and extortion. <u>Sixth Cause of Action – RICO:</u> As discussed above, the FACC adequately pleads acts including fraudulent interstate communications, a false police report, and extortion of Mr. Martin as part of an illegal scheme to wrongfully remove Cross-Complainant from his position with the company. Cross-Defendants are ORDERED to file an answer within 5 days.
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	Clerk to give notice. Special Motion to Strike (Anti-SLAPP) First Amended Cross-Complaint The Anti-SLAPP Motion to Strike Portions of the First Amended Cross-Complaint (FACC) by Cross-Defendants DI Overnite Investments, LLC, Joseph Varraveto, Renaissance Ventures LLC, and Douglas M. Garamoni is DENIED. Movants seek to strike the cause of action for violation of Federal Racketeer Influenced and Corrupt Organizations Act (RICO). Although the motion incorrectly identifies this as the seventh, rather than the sixth, cause of action, the Court will address the merits because the scope of the motion is sufficiently clear. <u>Legal Standard:</u> "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1).) "Section 425.16 posits ... a two-step process for determining whether an action is a [strategic lawsuit against public participation]. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity.... If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim." (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) "Only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning and lacks even minimal merit – is a SLAPP, subject to being stricken under the statute." (<i>Id.</i> at p. 89.) Litigation of an anti-SLAPP motion involves a two-step process. "First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Second, for each claim that does arise from protected activity, the plaintiff must show the claim has at least minimal merit. If the plaintiff cannot make this
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showing, the court will strike the claim.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009 [cleaned up] (*Bonni*).)

Step One – Protected Activity:

“The sole inquiry under the first prong of the anti-SLAPP statute is whether the plaintiff’s claims arise from protected speech or petitioning activity. [Citation.] Our focus is on the principal thrust or gravamen of the causes of action, *i.e.*, the allegedly wrongful and injury-producing conduct that provides the foundation for the claims.” (*Castleman v. Sagaser* (2013) 216 Cal.App.4th 481, 490–491.)

Here, the sixth cause of action alleges violations of RICO, 10 U.S.C. § 1961, based on communications related to the termination/removal of Cross-Complainant as CEO (FACC, Exs. 1, 3, 4, 5) and an alleged false police report regarding Cross-Complainant trespassing with armed individuals posing as security guards, threatening/coercing employees, and engaging in gender/sex discrimination. (FACC, ¶¶ 83-84.) The FACC alleges these seven categories of communications constituted “fraudulent acts of extortion, mail fraud, wire fraud and filing a false police report.” (¶ 77.)

Movants contend the sixth claim arises “in substantial part” from “the alleged report to law enforcement,” which included a claim involving Cross-Complainant’s improper use/theft of company vehicles. (FACC, ¶ 50, Motion, 6:22-23, 7:9-10.) Movants contend making a police report is protected activity. However, Movants do not cite legal authority showing the other categories of communications which this claim is based on are protected.

The Motion only seeks relief as to the entire RICO cause of action; it does not request in the alternative to strike any portion of that cause of action. The RICO cause of action is based on seven specified acts or communications, of which the allegedly false police report is the seventh. The Motion fails to address the other six factual bases for this claim.

“If a cause of action contains multiple claims and a moving party fails to identify how the speech or conduct underlying some of those claims is protected activity, it will not carry its first-step burden as to those claims.” (*Bonni, supra*, 11 Cal.5th at p. 1011.)

		Because the motion only addresses one of several factual bases for this cause of action, Movants have failed to meet their burden of showing the claim arises from protected activity. Cross-Defendants are ORDERED to file an answer within 5 days. Clerk to give notice.
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